

SENATE BILL NO. 364

INTRODUCED BY K. BOGNER

A BILL FOR AN ACT ENTITLED: "AN ACT ESTABLISHING KILL SWITCH LAWS; PROHIBITING AN ENTITY FROM REMOTELY ACTIVATING A KILL SWITCH WITHOUT A WARRANT; PROVIDING AN EXCEPTION; PROVIDING DAMAGES; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Kill switches in electronic consumer products -- warrant required -- exceptions -- definitions. (1) An entity may not activate a kill switch on an individual's electronic consumer product without a court order or a warrant issued pursuant to Title 46, chapter 5, part 2.

(2) This section does not apply to subscriptions, memberships, and other recurring-payment programs or to leased electronic consumer products. In the event an individual neglects to make regular payments, the entity may activate a kill switch to turn off the individual's subscribed services.

(3) As used in [sections 1 and 2], the following definitions apply:

(a) "Electronic consumer product" includes electronic devices as defined in 45-6-310 as well as motor vehicles as defined in 61-1-101.

(b) "Entity" means a company that manufactures or distributes an electronic consumer product or that provides service for an electronic consumer product's functionality.

(c) "Hard reset" means the restoration of an electronic consumer product to the state the electronic consumer product was in when it left the factory. Other terms commonly used are "factory reset" and "master reset".

(d) "Individual" means a natural person.

(e) "Kill switch" means a mechanism that may be engaged remotely, regardless of the owner's consent, and is used to:

(i) shut down or perform a hard reset on an electronic consumer product;

(ii) hasten the battery drainage of an electronic consumer product; or

1 (iii) shorten the software lifespan of an electronic consumer product.

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3 NEW SECTION. Section 2. Enforcement -- damages. (1) A violation of [section 1] is a violation of
4 30-14-103.

5 (2) The department of justice may bring an action to restrain any unlawful act pursuant to the
6 provisions of Title 30, chapter 14, part 1.

7 (3) An individual whose electronic consumer product has a kill switch activated in violation of
8 [section 1] may bring an action pursuant to 30-14-133, except that:

9 (a) the individual needs to show only a violation of [section 1] for that individual's electronic
10 consumer product and is not required to show any other ascertainable loss of money or property; and

11 (b) the individual is entitled to statutory damages of \$10,000 for each violation of [section 1] in
12 addition to any other damages or monetary award pursuant to 30-14-133.

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14 NEW SECTION. Section 3. Codification instruction. [Sections 1 and 2] are intended to be codified
15 as a new part in Title 30, chapter 14, and the provisions of Title 30, chapter 14, apply to [sections 1 and 2].

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17 NEW SECTION. Section 4. Effective date. [This act] is effective October 1, 2025.

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